

spending vacation time in his condominiums. Thus, he felt compelled to sell that “one remaining unit” in each of these complexes.

I have a dog.... Call him the six-figure doggie.... I have sold several condominiums because ... the people passed dog laws. [They told me,] “You know, you’ve got to get rid of the dog....” I’ll sell an entire building before I get rid of my dog.

Mr. W. anticipated that the status-conscious buyers of his latest venture would also be insensitive to his desire to have a dog. So before construction on the complex was even started, he listed his dog in the building’s declaration. It stated that Mr. W. and his family would have the right to have a dog with them when they were in residence.

All the buyers, according to Mr. W., were given copies of the declaration. Thus, they were all aware of Mr. W.’s right to have a dog in the complex. Not one owner objected at the time they purchased property. But shortly after the complex was completely sold out, excluding Mr. W.’s “last available unit,” the owners banded together and formed an action committee. Its purpose was to develop and enforce an expanded list of restrictive covenants. Certainly these new covenants would not restrict the rights of Mr. W. and his dog? After all, these rights were specified in the original declaration.

The action committee passed a dog law. It sidestepped the original declaration concerning dogs and stated that dogs would be allowed on the complex, with certain restrictions, if they weighed less than fifteen pounds. So much for doggie rights and original declarations. Mr. W. felt that this was a subterfuge to encourage him to sell out. His six-figure doggie weighed thirty pounds. He felt that even if the dog dieted, it could not come into compliance. Mr. W. was particularly disturbed that he was never allowed to cast a vote for or against the dog-related covenant. Nonetheless, he was determined to keep his dog in spite of the covenant. After all, he had been a major investor in the building before construction even began.

They [the action committee] wrote me a letter [and] stated that I had to get rid of the dog because it was over fifteen pounds.... So I went to one of their meetings.... I complained about their voting system.... I had no representation.